

Master Services Agreement (v2)

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PAGE 1 — MASTER SERVICES AGREEMENT (V2)

SECTION 1. REVISED PARTIES AND TERM

This Master Services Agreement Version 2 ('Agreement') is entered into effective 15 January 2026 ('Effective Date'), between ACME Corporation ('Customer') and XYZ Software Services Inc. ('Vendor').

SECTION 2. TERM OF AGREEMENT

The Term of this Agreement shall commence on 15 January 2026 and shall expire on 15 January 2027 ('Expiration Date'), unless renewed pursuant to Section 12.2.

SECTION 4. PAYMENT TERMS (NET 45)

Section 4.1 Payment Terms: Customer shall pay all undisputed invoices within forty-five (45) days of invoice receipt ('Net 45'). Payments shall be remitted by electronic funds transfer to Vendor's designated account.

SECTION 8. SERVICE LEVELS AND REPORTING

Section 8.1 Availability Commitment: Vendor warrants that the cloud platform will maintain 99.9% monthly uptime, offering 10% service credits if uptime falls below 99.9%.

Section 8.4 Monthly Performance Report: Vendor shall submit monthly performance reports and availability metrics within 5 business days after month end to Customer Operations.

SECTION 10. INSURANCE COVERAGE

Section 10.3 Required Policies: Vendor shall maintain Commercial General Liability and Cyber Risk insurance with aggregate limits of not less than \$2,000,000 throughout the Term and provide an annual Certificate of Insurance.

SECTION 12. TERMINATION AND RENEWAL NOTICE

Section 12.1 Termination for Cause: Either party may terminate for uncured material breach upon 30 days written notice.

Section 12.2 Renewal Notice: Either party may terminate this Agreement or prevent automatic renewal by providing at least ninety (90) days prior written notice before the expiration of the Initial Term (Expiration Date: 15 January 2027).

SECTION 15. AUDIT RIGHTS AND GOVERNING LAW

Section 15.2 Audit Rights: Customer or its designated independent auditor may conduct an annual audit of Vendor's security controls and compliance records.

Executed by authorized representatives of ACME Corporation and XYZ Software Services Inc.